

DebateAI Terms of Service

Proposed revision for DebateAIRO S.R.L. | Prepared 21 September 2026

Review draft. This is a separate replacement proposal for the supplied Terms of Service. It is not an adopted policy. Complete the bracketed company details and linked schedules, verify that the product can perform the commitments below, and obtain Romanian legal review before publication. The companion review identifies the proposed changes and country requirements. Remove this paragraph when the approved terms are published.

Version [VERSION] | Effective date [DATE]

1 Who operates DebateAI

DebateAI and dezbatare.ro are operated by DebateAIRO S.R.L., a company registered in Romania. In these terms, “we”, “us” and “our” mean that company.

Company or contact detail	Information to complete
Registered office	[STREET, NUMBER, SECTOR, POSTCODE], Bucharest, Romania
Trade Register number	[NUMBER]
Company registration code and VAT status	[CUI] and [VAT NUMBER OR NOT VAT REGISTERED]
Share capital	[RON AMOUNT]
General support and telephone	[SUPPORT EMAIL] and [TELEPHONE]
Legal notices	[LEGAL EMAIL]
Privacy requests	[PRIVACY EMAIL]
Illegal content and moderation appeals	[ABUSE EMAIL] and [APPEALS EMAIL]
Authority point of contact	[AUTHORITY EMAIL]; Romanian and English

These details remain directly and permanently accessible on our website. You can contact a person through support; our AI assistant is not the only way to reach us.

2 The contract and your rights

You enter into this contract by actively accepting these terms when registering or ordering a plan. We display the applicable terms before acceptance and make a copy available for you to save. For paid orders, we send confirmation and the applicable contract information by email or another durable medium. You can review and correct your information before ordering.

These terms, the plan information accepted at checkout and any expressly agreed order form govern your use. A specific order form prevails over a conflicting general term only to the extent clearly agreed and permitted by law. The acceptable use rules are in section 6.

The Privacy Notice at [PRIVACY NOTICE URL] and AI Provider Register at [PROVIDER REGISTER URL] explain our data practices and applicable provider conditions. They do not require you to waive privacy rights, supply a missing legal basis for processing, or consent to every use of your data. Where consent is required, we request it separately. A later update to either document cannot retrospectively reduce a contractual commitment.

Mandatory law takes priority over every part of this contract. Consumers retain all non-excludable rights. A consumer is an individual acting mainly outside their trade, business or profession. A business account does not remove consumer status where the law gives it to you.

Public debates may be read without an account. Reading a public page alone does not constitute acceptance of paid-plan obligations or a waiver of legal rights. Applicable law and any validly accepted terms govern reuse.

3 Eligibility and accounts

Account holders must be at least 18 and legally able to enter into the contract. If you act for an organisation, you must have authority to bind it. We may close an account that does not meet these requirements, subject to applicable law and section 10.

Provide accurate registration and recovery information and use the authentication controls required by the product. Keep your credentials and recovery codes secure and tell us promptly if you suspect unauthorised access. You are responsible for misuse attributable to your breach of these duties, subject to applicable law; you are not automatically responsible for every unauthorised action or for our security failures.

Use one account unless we agree otherwise. Do not sell, transfer or share access credentials. A public pseudonym is not a guarantee of anonymity. Contact support if a pseudonym reveals personal information or creates a safety concern. Account recovery may require proportionate identity checks and security waiting periods.

4 What DebateAI provides

DebateAI uses third-party AI models to develop arguments, counterarguments, critiques, references, scores and suggested conclusions about questions you submit. Available controls, usage allowances and models are described in the product and, for paid plans, before you order.

Generated arguments and support-assistant replies are AI output. We identify AI interaction and generated material clearly in the interface and on public debate pages. Unless a particular item is expressly identified as reviewed, you should not assume that a human has checked it. We remain responsible for our own legal and contractual duties.

AI can produce inaccurate, fabricated, biased, incomplete or outdated statements and references. Scores and confidence indicators are system estimates, not verified probabilities of truth. Check important claims against reliable primary sources. The service is for exploring arguments and does not provide professional advice or determine anyone's legal rights.

We provide the service with reasonable skill and care and in conformity with its agreed description and applicable statutory requirements. Necessary security and conformity updates, and remedies for non-conformity, remain available as required by law. The limitations of AI do not excuse failure to provide the service we promised.

Service may be interrupted by maintenance, incidents or third-party model outages. We take reasonable steps to prevent, investigate and resolve interruptions. No numerical uptime commitment applies unless expressly included in your plan or order form. Section 12 governs material changes, including loss of a model or feature included in a paid plan.

5 Plans and usage limits

The free plan is available on the conditions and limits shown before use. An account does not create a payment obligation unless you separately agree to a paid offer. We do not automatically convert free access into paid access.

Before you accept a paid plan or consumer trial, we show its features, included models or model categories, allowances, rate limits, total price including applicable taxes, currency, billing interval, minimum duration, renewal terms, trial end date, post-trial price and cancellation process. These details form part of the order. There are no undisclosed usage charges.

You may use competing services and providers. These terms do not impose exclusivity or require you to endorse DebateAI or any underlying model provider.

6 Acceptable use

Do not submit or publish unlawful material, including unlawful threats, harassment, defamation, incitement, child sexual abuse material, infringements of intellectual property, breaches of confidence or unlawfully disclosed personal data. Do not use the service to evade applicable sanctions or export restrictions.

Focus questions on issues and arguments. Do not submit another person's private, sensitive or identifying information, build personal dossiers, or infer sensitive traits about individuals. Discussion of a public figure's public conduct must still be lawful, necessary and proportionate; public status does not remove privacy or defamation protections. Avoid submitting your own sensitive information, secrets or material you lack authority to disclose.

Do not use the service to make or automate consequential decisions about health, safety, employment, credit, education admissions, immigration or legal entitlements. Do not impersonate people, fabricate apparent consensus or evidence, or misleadingly represent generated material as human-authored or independently verified. Preserve legally required AI disclosures and relevant attribution when sharing output.

Do not compromise accounts or infrastructure, bypass access controls or rate limits, introduce malicious code, or conduct disruptive testing. Automated access and bulk extraction require an interface and permission we have expressly made available for that purpose. A robots file is a technical crawling signal, not a general licence to reuse content or bypass these conditions. Nothing here restricts non-waivable statutory exceptions, lawful accessibility tools or legally protected research.

Do not resell our service or copy protected software, branding or databases without permission. You may independently develop or use competing products; doing so does not permit misuse of our protected material or breach of applicable third-party rights.

7 Your content and AI processing

You retain any rights you hold in the questions, annotations and other material you submit. You give us a non-exclusive, worldwide, royalty-free licence to process, reproduce and store it only as reasonably needed to provide the requested service, secure and support it, comply with law and carry out your publication choices. We may authorise contracted service providers to act for these purposes. The licence does not transfer ownership and does not permit unrelated commercial exploitation.

To generate a debate, content may pass to several AI providers. This can include your question, selected context, annotations and output from an earlier model for a later model to assess. Associated service metadata may also be processed. We minimise what we send and do not intentionally include account contact details or credentials in model prompts. Text can still contain personal information, including information you supply or a model generates.

We will not train our own models on your private content or authorise an AI provider to train general models on it. We use provider contracts and configurations consistent with this commitment. A separate, genuinely optional contribution programme would require distinct terms and any legally required consent; declining it would not prevent ordinary use.

No training does not mean no retention. Providers may retain content for limited security, abuse-prevention, service-functionality or legal purposes. "Zero Data Retention" applies only to the identified provider, account configuration, model, endpoint and features covered by that arrangement, with its disclosed exceptions. It does not describe storage by DebateAI, other providers or copies you publish.

Before content is routed to a provider, the AI Provider Register identifies the applicable recipient legal entity, purpose and data categories, processing countries or regions, training conditions, retention periods or criteria, feature exceptions, transfer safeguards, ZDR status and last verification date. If a material provider change alters these conditions, we update the disclosures and give applicable notice before the new processing. Required consent or other legal conditions must be satisfied before that processing begins.

International transfers of personal data take place only where a valid legal mechanism applies. Depending on the route, this may include an applicable adequacy decision or contractual safeguards with the required assessment and supplementary measures. Disclosure of an overseas destination alone is not that mechanism. The Privacy Notice explains how to obtain information about the safeguards.

8 Outputs and confidentiality

As between you and us, you may use the output of your debates, subject to applicable law and any specific third-party restrictions clearly disclosed before the affected feature is used. To the extent we hold transferable rights in that output, we assign them to you. This does not guarantee that AI output attracts copyright, is unique or is free of third-party material. Source material and third-party rights remain with their owners.

Your rights to output already lawfully obtained survive termination. That does not extend third-party licences beyond their terms or oblige us to retain a debate indefinitely. We do not offer an output use, publication or storage option unless the applicable provider rights permit it. If a feature has narrower rights, we explain them before use.

We keep private debate content confidential, using it only for the purposes described in section 7. Access may be given to authorised personnel and service providers who need it and are subject to suitable confidentiality obligations, or where disclosure is legally required. This obligation does not apply to information lawfully public through no breach by us, independently developed, or lawfully obtained without a duty of confidence. Publication makes the material you choose to publish public; account details are not thereby made public.

9 Publishing and removing debates

Debates are private from other users by default. Publication requires an explicit confirmation after a preview of the information to be made public. It may include your pseudonym, question, argument graph, scores and AI-generated conclusions. Search engines and other people may copy or index the public page.

You grant us a limited, non-exclusive licence to display the snapshot publicly for as long as you keep it published. This permits operating the public page and the quoting described in section 14, but does not grant an unrelated resale or model-training licence.

You may unpublish a debate through its controls or request removal through support. We stop serving it publicly without undue delay. We cannot guarantee removal of copies independently held by others, but we take any further steps required by applicable law. Unpublishing and deleting private history are separate actions.

Account closure unpublishes your debates. When closure becomes final, we remove your published snapshots from public access without undue delay and no later than 30 days afterwards. A limited non-public copy may be retained where lawfully necessary, as described in the Privacy Notice. Legal erasure requests and legally required faster removal are not delayed by this period.

We may remove or restrict content that is unlawful, violates these terms, or must be restricted by a competent authority, following section 10. A person mentioned in a debate can request correction or removal through the privacy or illegal-content contacts without opening an account. A pseudonym or a broken account link does not by itself make published content anonymous.

10 Reports moderation and appeals

Anyone can use the report control on a public debate or contact [ABUSE EMAIL]. Explain the alleged illegality, identify the exact URL and relevant passage, and state that you believe the report is accurate and complete. Include your name and email where required; reports concerning the child sexual abuse offences covered by the applicable notice rules do not require them. We assess reports containing enough information to act, and request clarification where appropriate.

We handle notices promptly, diligently, objectively and without arbitrary decisions. Where contact details are available, we acknowledge receipt and communicate the decision and available redress. We explain any use of automated means in processing or deciding the notice where required. Credible information indicating a criminal offence involving a threat to life or safety is referred to the competent authorities as required by law.

We may warn users, refuse a generation request, restrict or remove content, or suspend or terminate accounts. We consider the nature, seriousness and recurrence of the issue and its effect on others. AI-generated evaluations of an argument are distinct from moderation decisions about your access or content.

When we restrict content or an account, we provide the affected user with the reasons, scope, relevant facts, legal or contractual basis, use of automation and available appeal routes, subject to lawful exceptions such as a prohibition on disclosure. We do not rely exclusively on automation to decide an appeal.

You may appeal without charge through [APPEALS EMAIL] for at least six months after a moderation decision. A suitably qualified person reviews it and we communicate a reasoned result. This is our service commitment even if an exemption from a particular statutory appeal obligation applies. Where the Digital Services Act gives you access to a certified out-of-court dispute settlement body, we identify that route in the decision. Consumer ADR, regulatory complaints and courts remain separately available.

11 Closing or suspending an account

You can request closure in Settings or through support. Unless you ask for immediate closure or law requires a different process, a seven-day cancellation period applies before closure becomes final. We explain its consequences and the available export route before completion. Cancelling a subscription is a separate option; you do not have to delete your account to stop renewal.

We may suspend or terminate for a material breach, a legal requirement or an objectively necessary security measure. Where practicable and proportionate, we give notice and an opportunity to remedy the problem. Urgent protective action may be immediate. We provide reasons and redress under section 10, subject to lawful exceptions.

If we end the service or withdraw access for a non-breach reason, we normally give at least 30 days' notice, provide a reasonable export opportunity and refund prepaid fees for the period we cannot supply. A legal or urgent security restriction may require shorter notice; refund and mandatory rights still apply.

On final closure we start deletion of private debate and account data and unpublish snapshots as described in section 9. The Privacy Notice specifies deletion and backup schedules and any limited retention for security, disputes or legal records. Retained information is restricted to the purposes that justify keeping it. We do not claim that account closure immediately deletes every provider log, backup or third-party copy.

Output rights already granted, confidentiality, outstanding lawful payments, dispute provisions and rights or duties that necessarily continue survive termination. A surviving clause does not authorise indefinite retention or public display of personal information.

12 Payments withdrawal renewal and changes

This section governs paid offers when available. Applicable withdrawal and digital-service rights also extend to qualifying free offers where the law requires. Payment requires a separate affirmative order. For Romanian checkout we use “Comandă cu obligație de plată” or an equally unambiguous lawful label, and equivalent clear wording in other checkout languages. We send the order and terms on a durable medium.

Withdrawal. Consumers in Romania and other EEA markets have a 14-day withdrawal period from conclusion of a distance service contract, subject to applicable law. You may withdraw using [ONLINE WITHDRAWAL URL], by emailing [WITHDRAWAL EMAIL], or by another unequivocal statement sent before the deadline. The optional form in the annex may be used but is not required. We confirm an online withdrawal without undue delay on a durable medium, recording its content, date and time.

If you expressly ask for a paid service to start during the withdrawal period, and we have given the required information, you pay only the legally permitted proportion for service actually supplied before withdrawal. Starting use does not itself remove the right. For a service contract, the right is lost on full performance only where the required prior express consent and acknowledgement were obtained. We do not treat the first AI response as full performance of an ongoing subscription. We refund sums due without undue delay and no later than 14 days after being informed of withdrawal, using the original payment method unless you agree otherwise, without a refund fee.

If a separately sold product is legally classified as digital content rather than a service, we explain its different withdrawal conditions and obtain any required separate consent and acknowledgement before supply. This paragraph does not itself waive a right. Local mandatory withdrawal rules take priority, including longer rights arising from missing information.

Renewal and cancellation. A plan renews automatically only where the renewal terms were clearly disclosed and separately accepted as required. Trial and renewal reminders are sent where required by law. You may stop renewal using the clearly accessible online cancellation function, without contacting an agent or deleting your account. Cancellation takes effect at the end of the paid period unless you have a right to end it earlier. We confirm the effective date on a durable medium. No fresh payment is taken after effective cancellation.

Price changes. We give at least 30 days' notice on a durable medium before a price increase, or longer where required. Increases apply prospectively to a future renewal, with the opportunity to cancel before the increase. We obtain a new affirmative agreement where required; silence alone is not consent in those circumstances.

Service changes. We may make changes necessary to maintain conformity or security. Other changes require a valid reason: changes in law; an evidenced security or abuse problem; withdrawal or alteration of an underlying model; changes in technical dependencies; or a defined improvement that does not reduce the agreed essential functionality. We do not charge extra for such a modification without a separate agreement.

We explain material changes clearly and, where required, give reasonable advance notice on a durable medium. We aim to give at least 30 days' notice of a planned material model or feature deprecation; an urgent external withdrawal may prevent that. If a change has more than a minor negative effect on access or use, you may terminate without charge within 30 days after notice or the change, whichever is later, subject to any statutory exception for maintaining the unchanged conforming service without extra cost. Applicable refunds and conformity remedies remain available.

Changes to these terms. We give at least 30 days' advance notice of material contractual changes and explain their reason and effect. Changes are prospective and do not remove accrued rights. Where affirmative acceptance is required, we request it. If a material change cannot be accepted, you may end the affected service and receive any refund required by law or these terms. Essential paid commitments are not reduced mid-term simply by updating a web page.

13 Responsibility and remedies

We are responsible for loss for which applicable law makes us liable, including failure to exercise reasonable skill and care or provide a conforming service. Consumers may require conformity, a price reduction or termination and reimbursement where the statutory conditions are met. We do not impose a general monetary cap or exclusion of statutory remedies on consumers in these terms.

Nothing excludes or limits liability for fraud, wilful misconduct, gross negligence, death or personal injury where liability cannot be excluded, unlawful processing where compensation is due, or any other non-excludable responsibility. Business-specific risk allocation requires an expressly agreed lawful order form; it is not inferred from your use of a business email address.

You remain responsible for lawful submission and use of material. We may take your conduct into account only as permitted by law. The warnings about AI help explain its limits; they are not a blanket exclusion of our responsibility for our own acts, misleading claims or contractual failures.

Events outside reasonable control are assessed under applicable law. A provider outage is not automatically force majeure and does not automatically remove rights to refunds, termination or remedies for non-supply. Each party must take reasonable steps to mitigate avoidable loss.

14 Intellectual property

Our software, interface, branding and other protected service components belong to us or our licensors. We grant you the limited permission needed to use the service under this contract. This does not affect your input and output rights under sections 7 and 8.

To the extent we have the necessary rights, you may link to and reasonably quote public debates with attribution and a link to the original. Respect source licences, others' rights and legally required AI labels. This permission does not authorise systematic copying of a protected database or reuse beyond rights we can grant. Statutory exceptions remain available. Report alleged infringement using section 10.

15 Privacy

The Privacy Notice explains the controller, purposes and legal bases, data categories, recipients, retention and deletion, international transfers, applicable rights and regulatory complaint routes. The Provider Register gives the provider and feature details described in section 7. You may exercise privacy rights through [PRIVACY EMAIL] without closing your account or using a public-content appeal route.

Users' acceptable use duties do not replace our own data-protection obligations. We assess requests involving private or public content, including requests from non-users, under applicable law. We do not treat all public content as exempt from erasure or all published pseudonyms as anonymous.

16 Complaints and applicable law

Contact [SUPPORT EMAIL] for service complaints. We aim to provide a substantive response within five working days and tell you if a matter needs longer. This target does not extend a legal deadline or require you to complain to us before exercising other rights.

For Romanian consumer disputes, information about alternative dispute resolution is available from ANPC at <https://reclamatii.sal.anpc.ro>. Our participation position and any applicable ADR entity are stated at [ADR INFORMATION URL]. We supply the specific information required by law when a complaint remains unresolved. This consumer route is separate from DSA content-moderation redress. The discontinued EU ODR platform is not a submission route.

Romanian law governs these terms, subject to applicable conflict-of-law rules. This choice does not deprive a consumer of non-waivable protection under the law of their habitual residence where that protection applies. Mandatory rights in markets outside the EEA are also preserved.

For consumers, jurisdiction follows applicable mandatory law, including rights to sue in their home courts and restrictions on where we may sue them. We do not impose mandatory arbitration or a class-action waiver on consumers. For business disputes, the competent courts in Bucharest have jurisdiction unless a signed order form or mandatory law provides otherwise.

17 Other provisions

We may transfer this contract with the business only where your rights are not reduced and applicable law allows it. We notify you of the transfer and any material effect. You may transfer rights where the law permits, or with our reasonable written agreement.

If a term is unenforceable, it is disappplied to the extent required by law. The remaining contract continues only where legally possible. An unfair consumer term is not automatically replaced with the closest term favourable to us. A delay in enforcing a right does not itself waive it.

These terms do not exclude binding pre-contract information, expressly agreed commitments, or remedies for misrepresentation. Supplier agreements do not automatically become your contract or waive rights you have against us.

The language offered and accepted for your contract is recorded with the order. We provide Romanian terms and required Romanian consumer information for our Romanian offer. We do not use an English-language priority clause to reduce rights under mandatory local law. Required local-language versions must be provided before an affected offer is made available.

Annex Optional withdrawal form

Complete and send this form only if you wish to withdraw. Any other clear withdrawal statement is also acceptable.

To DebateAIRO S.R.L., [REGISTERED ADDRESS], [WITHDRAWAL EMAIL]:

I hereby give notice that I withdraw from my contract for the following service: _____

Date of order or contract: _____

Consumer name and address: _____

Account email or order reference: _____

Date: _____

Signature, only if submitted on paper: _____